

TENTATIVE RULINGS for LAW and MOTION

May 12, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Bernal v. AUS Decking, Inc.**
 Case No. CV2024-0732

Hearing Date: **May 12, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Interstate Management Company, LLC v. Presidioco Holdings LLC et al.**

Case No. CV2025-1172

Hearing Date: **May 12, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Interstate Management Company, LLC's ("plaintiff") evidentiary objections to the declaration of Guneet Bajwa Nos. 4, 5, 6, 9, 11, and 12 are **OVERRULED** as the evidence objected to is relevant to the Court's determination of this motion. (Evid. Code, § 210, 350.) The Court declines to rule on the remaining evidentiary objections because the evidence objected to is not relevant to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court declines to consider the supplemental declarations of Dana M. Silva and Cindy Landes filed by plaintiff on March 6, 2026. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538.)

Plaintiff's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(1).) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The Court finds that plaintiff has made a prima facie showing in support of its breach of contract cause of action against defendants Presidioco Holdings LLC ("Presidioco"), 110 F Street LLC ("110 F Street"), 2750 Cowell Hotel, LLC ("2750 Cowell Hotel") and 1020 West Capitol Hotel ("1020 West Capitol Hotel") (collectively, "defendants".) (UMF 1-14.) However, the Court further finds that defendants provided evidence raising a triable issue of material fact as to whether the addendum was negotiated in good faith. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; see also Cal. Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion"]; UMF 5; Bajwa Decl., ¶¶ 6-8, 12, 14-15, Exhs. 4-6, 11-13.)

Plaintiff's motion for summary adjudication as to defendants Presidioco, 110 F Street, and 1020 West Capitol Hotel is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(1).) For the same reasons identified by this Court in denying plaintiff's motion for summary judgment, this Court finds that although plaintiff has made a prima facie case showing in support of its breach of contract cause of action as against Presidioco, 110 F Street, and 1020 West Capitol Hotel, defendants have provided evidence raising a triable issue of material fact as to whether the addendum was negotiated in good faith as to all defendants. (*Nazir, supra*, 178 Cal.App.4th at p. 252; Cal. Rules of Court, rule 3.1350(d)(2); UMF 18; Bajwa Decl., ¶¶ 6-8, 12, 14-15, Exhs. 4-6, 11-13.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **JPMorgan Chase Bank, N.A. v. Diaz**
Case No. CV2025-2477

Hearing Date: **May 12, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff JPMorgan Chase Bank, N.A.'s motion for order that matters in request for admission of truth of facts be deemed admitted is **GRANTED**. (Code Civ. Proc., § 2033.280; Parks decl., ¶¶ 2-3, Exhibit 1.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **JPMorgan Chase Bank, N.A. v. Gutierrez**
Case No. CV2025-0896

Hearing Date: **May 12, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff JPMorgan Chase Bank, N.A.'s motion for order that matters in request for admission of truth of facts be deemed admitted is **GRANTED**. (Code Civ. Proc., § 2033.280; Parks decl., ¶¶ 2-3, Exhibit 1.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mickel et al. v. HB Inc. et al.**
 Case No. CV2025-2591

Hearing Date: **May 12, 2026** **Department Eleven** **9:00 a.m.**

On defendants Sajjan Singh and HB Inc.'s motion to consolidate, please refer to the tentative ruling in Case No. CV2025-0641. (See Cal. Rules of Court, rule 3.350(a), (b).)

TENTATIVE RULING

Case: **Palomino Place, LLC v. Davis Joint Unified School District**
 Case No. CV2025-2301

Hearing Date: **May 12, 2026** **Department Eleven** **9:00 a.m.**

Respondents Davis Joint Unified School District and Davis Joint Unified School District Board of Education's demurrer to petitioner Palomino Place, LLC's verified petition for writ of mandate and complaint for declaratory relief, filed on September 5, 2025, is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 430.10, subds. (e).) On May 6, 2025, at petitioner's request, the clerk dismissed the petition and complaint to which respondents demur. (*In re S.P.* (2020) 53 Cal.App.5th 13, 16; see also petitioner's response to demurrer, p. 2.)

TENTATIVE RULING

Case: **Tariq v. Singh et al.**
 Case No. CV2025-0641

Hearing Date: **May 12, 2026** **Department Eleven** **9:00 a.m.**

Defendants Sajjan Singh and HB Inc.'s (collectively, "defendants") motion to consolidate case CV2025-0641 with case CV2025-2591 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 1048, subd. (a).) The Court finds that defendants' motion does not comply with the procedural requirements of California Rules of Court, rule 3.350. Specifically, defendants' motion does not satisfy the following: (1) The notice of motion does not list all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record as required by California Rule of Court, rule 3.350(a)(1)(A); (2) the notice of motion does not contain captions of all cases sought to be consolidated, with the lowest numbered case first as required by California Rule of Court, rule 3.350(a)(1)(B); (3) defendants did not file an order in each case sought to be consolidated as required by California Rule of Court, rule 3.350(c); and (4) the documents filed in the consolidate case does not include the caption and case number of the lead case, followed by the case numbers of all other consolidated cases as required by California Rule of Court, rule 3.350(d).

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.